

STATE OF NEW YORK

4468--C

2025-2026 Regular Sessions

IN SENATE

February 5, 2025

Introduced by Sens. MAYER, ASHBY, COONEY, HARCKHAM, JACKSON, RHOADS -- read twice and ordered printed, and when printed to be committed to the Committee on Labor -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Labor in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reported favorably from said committee and committed to the Committee on Finance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the workers' compensation law, in relation to providing family leave to persons recovering from a pregnancy loss

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 15 of section 201 of the workers' compensation
2 law, as added by section 2 of part SS of chapter 54 of the laws of 2016,
3 is amended to read as follows:
4 15. "Family leave" shall mean any leave taken by an employee from
5 work: (a) to participate in providing care, including physical or
6 psychological care, for a family member of the employee made necessary
7 by a serious health condition of the family member; or (b) to bond with
8 the employee's child during the first twelve months after the child's
9 birth, or the first twelve months after the placement of the child for
10 adoption or foster care with the employee; or (c) to recover from a
11 pregnancy loss at or after twenty weeks of gestation if the employee who
12 experienced such pregnancy loss would have been eligible to take family
13 leave benefits under paragraph (b) of this subdivision but is deemed
14 ineligible for family leave benefits under such paragraph as a result of
15 such pregnancy loss; or (d) because of any qualifying exigency as inter-
16 preted under the family and medical leave act, 29 U.S.C.S §
17 2612(a)(1)(e) and 29 C.F.R. S.825.126(a)(1)-(8), arising out of the fact

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 that the spouse, domestic partner, child, or parent of the employee is
2 on active duty (or has been notified of an impending call or order to
3 active duty) in the armed forces of the United States.
4 § 2. This act shall take effect on the ninetieth day after it shall
5 have become a law.